



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 18, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21083

EXPIRATION DATE: 2024-10-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Alliant Techsystems Operations LLC
Rocket Center, WV
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials and waste materials along an approximately 1.3 mile stretch of roadway between the Barton Park Shell building, Cumberland, MD, and the Alliant Techsystems Operations LLC plants 1, 2, and 3 in Rocket Center, WV without shipping papers, marking, labeling, and placarding and with alternative emergency response information. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172 Subparts C, D, E, and F of Part 172 in that shipping papers, markings, labels and placards are required; § 172.602(c)(1) in that emergency response information must be maintained in the same manner as prescribed for shipping papers; and § 172.604(a)(3) in that an emergency response telephone number must be entered on a shipping paper, except as specified.
5. BASIS: This special permit is based on the application of Alliant Techsystems Operations LLC, dated July 27, 2020, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name^{1, 2}	Hazard Class/ Division	Identification Number	Packing Group
Class 1.4 hazardous materials	1.4	As appropriate	N/A
Class 2.1 hazardous materials	2.1	As appropriate	N/A
Class 3 hazardous materials	3	As appropriate	I, II, III
Class 4.1 hazardous materials	4.1	As appropriate	I, II, III
Class 5.1 hazardous materials	5.1	As appropriate	I, II, III
Class 5.2 hazardous materials	5.2	As appropriate	N/A
Class 6.1 hazardous materials	6.1	As appropriate	I, II, III
Class 8 hazardous materials	8	As appropriate	I, II, III
Class 9 hazardous materials	9	As appropriate	I, II, III

¹A material poisonous by inhalation or a material toxic by inhalation (see 49 CFR 171.8) is not authorized under the terms of this special permit.

²Waste materials are authorized.

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: As authorized by the HMR.

b. OPERATIONAL CONTROLS:

(1) Transport shall be limited to private carriage with company drivers, along an approximately 1.3 mile stretch of roadway between the Barton Park Shell building, Cumberland, MD, and the Alliant Techsystems Operations LLC plants 1, 2, and 3 in Rocket Center, WV.

(2) In lieu of shipping papers, drivers must have in their possession: a list identifying the hazardous material(s) in the hazardous materials packages on the vehicle with the quantities and number of packages; an Emergency Response Guidebook; and the SDS for each hazardous material present. These documents must be maintained in the same manner as a shipping paper under 49 CFR 177.817(e).

(3) During all movements under the terms of this special permit, a driver must maintain verbal communication between their vehicle and security guards and plant supervisors. During all movements under the terms of this special permit, Plant 1 security guards must be on stand-by in the event of an emergency and must be first responders on the scene.

(4) An Alliant Techsystems Operations LLC employee familiar with the hazardous materials transported must escort each shipment. They must be in a separate vehicle.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each building where the packages are offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DUNHAM